

Surendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 March 2018 · Writ-C No. 5556 of 2018 · **Writ disposed; petitioner relegated to CGRF; recovery stayed two months**

HEADNOTE

Allahabad High Court disposed of a writ challenging a Rs. 6,00,243 demand notice by relegating the consumer to the Consumer Grievance Redressal Forum, Meerut under Clause 7.10 of the Electricity Supply Code, 2005, directing a decision within four weeks and keeping recovery in abeyance for two months.

FACTUAL SUMMARY

Surendra Singh challenged a demand notice dated 21 November 2017 issued by respondent no. 3 for recovery of Rs. 6,00,243. He alleged that the demand was a final assessment under Section 125 of the Electricity Act, made without serving a copy of the provisional assessment and without hearing. The licensee contended that the writ raised disputed questions of fact and that the petitioner had a remedy before the Consumer Grievance Redressal Forum, Meerut under Clause 7.10 of the Electricity Supply Code, 2005. The petitioner was permitted to implead the Forum as respondent no. 4.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF remedy for demand-notice grievance

HOLDING

A writ challenging a demand notice on the plea that final assessment was made without serving a provisional assessment or affording a hearing raises disputed questions of fact not suited to writ jurisdiction; the consumer's remedy is a representation to the Consumer Grievance Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005. The Forum was directed to decide such a representation, filed within two weeks, within a further four weeks after hearing all parties, and recovery under the 21.11.2017 demand was kept in abeyance for two months or until the Forum decides. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 21.11.2017, INCLUDING ALLEGED NON-SERVICE OF PROVISIONAL ASSESSMENT AND DENIAL OF HEARING BEFORE FINAL ASSESSMENT

The Court did not examine the petitioner's plea that the demand was a final assessment under Section 125 of the Electricity Act. ¶ 1